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IN THIS ISSUE

Judgment of the Month: State of Tamil Nadu v. Jungle Games India (2026 INSC 594)
Constitutional Watch: AI Regulations for Courts | Fair Trial Rights | Article 142 | Homemakers
Legislative Tracker: Delimitation Bills | Transgender Amendment Act | Labour Codes
Policy Pulse: Telangana Advocates Protection Act | E-Prisons Module
Editor's Note: The Courts, the Algorithm, and the Question Nobody Is Asking

Research Director: Bhoomija Khanna | Alliance University, Bangalore

01 | JUDGMENT OF THE MONTH**State of Tamil Nadu & Ors. v. Junglee Games India Pvt. Ltd. & Ors.**

2026 INSC 594 | Civil Appeal Nos. 6124-6131 of 2023 | Decided: May 27, 2026 | Bench: Justice J.B. Pardiwala and Justice R. Mahadevan

Background

Tamil Nadu and Karnataka amended their gambling statutes in 2021 to ban online games played for real money, covering rummy, poker, and fantasy sports. Both states were responding to documented harm: addiction, debt, and suicides linked directly to real-money gaming platforms. Tamil Nadu followed up with the Tamil Nadu Online Gambling Act in 2022-23.

The gaming industry went to court. Junglee Games, Dream11, and the All India Gaming Federation challenged the state laws before the Madras and Karnataka High Courts. Their argument was straightforward: games of skill are constitutionally protected commercial activity under Article 19(1)(g). Both High Courts agreed. Entry 34 of List II, which gives states power over betting and gambling, cannot reach skill-based games, they said. The states appealed.

The Constitutional Questions

Two questions framed the case. Does betting and gambling under Entry 34 cover wagering on skill-based games, or only games of pure chance? And is staked gaming protected under Article 19(1)(g), or does it fall outside constitutionally protected commerce entirely — what lawyers call *res extra commercium*?

What the Court Held

The Supreme Court overturned both High Courts. Once money is staked on an uncertain outcome, the skill involved in the underlying game becomes irrelevant. That is the holding. The activity is betting under Entry 34 regardless of what is being played.

Once wagering enters the picture, the nature of the underlying game ceases to be of relevance. (2026 INSC 594)

Betting and gambling activities are *res extra commercium*. No Article 19(1)(g) protection. States can regulate, restrict, or prohibit online money gaming under Entry 34 and under Entry 1 on public order. Industry loses.

The Federal Dimension

The bigger story is what this judgment does to the constitutional map. Parliament had already enacted the Promotion and Regulation of Online Gaming Act, 2025, which came into force in May 2026. PROGA bans online money games nationwide with penalties up to three years imprisonment and fines up to Rs. 1 crore. The Union claims authority under Entry 31 of List I on communications. PROGA is itself under challenge.

The Supreme Court has now confirmed that states are independently competent to prohibit staked online games under their own constitutional heads. The result is a double prohibition built from two different sources of legislative authority. Even if PROGA falls in the ongoing challenge, the state bans stand. The industry cannot win by taking down one layer. Both layers have to go simultaneously, and that is close to impossible.

Why This Matters

This ends the skill-versus-chance debate that has framed gaming litigation in India since the 1960s. It affects the ongoing PROGA challenges, GST liability on gaming platforms, and any future regulatory attempt to distinguish between game types. More broadly, the judgment is a statement about state power and public health as justifications for restricting commerce. That reasoning will be used again.

02 | CONSTITUTIONAL WATCH**Key Developments at the Supreme Court | June 2026**

1. Draft AI Regulations for Courts

Supreme Court AI Committee | Released: June 3, 2026 | Comment deadline extended to June 20, 2026 | sci.gov.in

The Supreme Court's AI Committee released draft Regulations for Use of Artificial Intelligence in Courts, 2026 on June 3. Once finalised, these regulations will govern AI deployment across all courts in India including High Courts, tribunals, and statutory commissions. This is the development of the month. It got less attention than it deserved.

The core rule is clear: AI assists, it does not decide. AI-driven adjudication, sentencing, bail-risk assessment, recidivism prediction, behavioural profiling, and dispute-outcome prediction are all prohibited. What is permitted: legal research, precedent retrieval, document summarisation, transcription, translation, case management, and cause-list preparation.

One provision every practising advocate needs to know about: disclosure is now mandatory. Lawyers will be required to disclose when AI tools were used in preparing submissions or arguments. No precedent for this obligation exists in Indian legal practice.

The draft also addresses AI-generated fake case citations, which courts have already encountered. The response is a prohibition on undisclosed or unexplainable AI systems in matters affecting personal liberty. The instinct is right. Whether the enforcement mechanism is adequate is a separate question. The comment deadline was June 20, 2026. NLO submitted comments through the public portal.

2. Fair Trial Rights and Chargesheet Documents

Supreme Court of India | June 6, 2026

The Supreme Court ruled that withholding documents relied upon in a chargesheet from the accused violates Articles 21 and 22, even where those documents are classified under the Official Secrets Act. The Court directed federal investigators to provide typed copies to the accused.

The right to a fair trial cannot be subordinated to executive convenience or classification protocols. The Court has said this before. The fact it had to say it again in 2026 is the detail worth sitting with.

3. Article 142 and Irretrievable Breakdown of Marriage

Supreme Court of India | June 6, 2026

The Supreme Court used Article 142 to dissolve a marriage on grounds of irretrievable breakdown, overturning the Family Court and the High Court. The bench held that persistent denial of marital intimacy can constitute mental cruelty.

This continues from *Shilpa Sailesh v. Varun Sreenivasan* (2023) 1 SCC 507. The pattern is consistent: the Supreme Court dissolving marriages where statutory grounds are unavailable but the relationship has clearly collapsed. Parliament has not introduced irretrievable breakdown as a statutory ground. The Court is filling that gap one case at a time. Whether that is appropriate use of Article 142 is a question the legal community has not settled.

4. Homemakers as Nation Builders

Shishu Pal @ Shish Ram & Ors. v. Surjeet & Ors. | 2026 INSC 634 | Decided: June 11, 2026 | Bench: Justice Sanjay Karol and Justice N. Kotiswar Singh

The Court held that in motor accident claims involving the death of a homemaker, a separate head of Loss of Domestic Care must be factored into compensation, fixed at Rs. 30,000 per month and revisable by ten percent every three years. The bench described homemakers as the true Nation Builders.

The legal point matters more than the phrase. Indian courts have historically undervalued domestic work in compensation calculations. A mandatory separate head for domestic care acknowledges that homemaking has economic value and that its loss causes quantifiable harm. Where the homemaker has no proven income, the Rs. 30,000 figure stands as notional monthly income. This affects insurance law, tort law, and how courts understand unpaid labour.

5. Three New Judges at the Supreme Court

June 2, 2026 | Source: Supreme Court of India Press Release

Justice Shree Chandrashekhar, formerly Chief Justice of the Bombay High Court; Justice Sanjeev Sachdeva, formerly Chief Justice of the Madhya Pradesh High Court; and Justice Sheel Nagu, formerly Chief Justice of the Punjab and Haryana High Court, took oath on June 2. All three were nominated by Chief Justice Surya Kant. NLO will track their contributions to significant decisions going forward.

03 | LEGISLATIVE TRACKER**Parliament in Recess. Three Developments Define What Comes Next.**

Parliament concluded the Budget Session on April 2, 2026. The Monsoon Session is expected in late July. Three legislative developments from the Budget Session will shape the political calendar for the rest of the year.

1. The Delimitation Bills: Defeated in April, Not Going Away

Constitution (131st Amendment) Bill, 2026 | Negatived: April 17, 2026 | Source: PRS Legislative Research, LiveLaw, The Wire

On April 16, 2026, the government introduced three Bills in a special parliamentary session: the Constitution (131st Amendment) Bill, the Delimitation Bill, and the Union Territories Laws (Amendment) Bill. The stated purpose was operationalising the 33% women's reservation committed to in the Constitution (106th Amendment) Act, 2023. The Constitution (131st Amendment) Bill proposed increasing Lok Sabha seats from 543 to 850, rebased on current population. The Bills were defeated on April 17. With 528 members present and voting, the government needed 352 votes. It secured 298. The two companion Bills were subsequently withdrawn.

The political fault lines are not subtle. Southern states, Tamil Nadu, Karnataka, Kerala, Andhra Pradesh, and Telangana, have argued consistently that reapportionment based on current population figures punishes them for controlling their population over five decades while northern states did not. Tamil Nadu CM M.K. Stalin has called delimitation a Damocles sword over southern India.

The opposition framing, delivered by Rahul Gandhi on the floor of the House, was direct: the Bills used women's reservation as political cover for an electoral map redesign. The argument has force. The women's reservation commitment under the 2023 Act pre-existed these Bills. Tying its operationalisation to delimitation and seat expansion was a choice, not a constitutional requirement. The Bills will return in some form. This is the defining legislative battle of the current term.

2. Transgender Persons (Protection of Rights) Amendment Act, 2026

Bill No. 79 of 2026 | Presidential Assent and in force: March 30, 2026 | Source: PRS India, Amnesty International, The Bridge Chronicle

The Amendment Act was passed by voice vote in the Lok Sabha on March 24 and cleared by the Rajya Sabha on March 25. Presidential assent and gazette notification followed on March 30. The Act came into force on the same day. The entire process, from introduction to commencement, took seventeen days.

The Amendment removes Section 4(2) of the 2019 Act, which had codified the right to self-perceived gender identity following *NALSA v. Union of India* (2014) 5 SCC 438. Under the new framework, gender identity recognition is no longer based on self-perception. It now requires medical board verification followed by certification by the District Magistrate. The

Act is under constitutional challenge before the Supreme Court in W.P.(C) No. 548/2026, which has been issued notice but not stayed.

NLO will publish a dedicated analysis of the Amendment's constitutional implications and its relationship to the NALSA framework in a forthcoming piece.

3. Labour Codes: EPF Wage Ceiling Notified

Ministry of Labour and Employment | Notification date: June 1, 2026 | Source: Ministry of Labour and Employment Official Gazette

The Labour Ministry notified a wage ceiling of Rs. 15,000 for EPF coverage under the Code on Social Security, 2020. India's four labour codes, consolidating 29 central labour laws, have been passed but implementation has been slow and uneven. NLO will track labour code operationalisation as a continuing thread.

04 | POLICY PULSE**Executive and Institutional Developments | June 2026**

Telangana Advocates Protection Act, 2026: In Force

Came into force: June 2, 2026 | Source: Telangana State Gazette

The Telangana Advocates Protection Act, 2026 came into force on June 2, creating a legal framework protecting advocates from assault, obstruction, or interference while doing their jobs. Lawyers working on criminal defence, human rights matters, or against powerful institutional interests have faced documented threats and professional retaliation across India. Whether this Act provides real enforcement or stays on paper will depend entirely on how it is used.

E-Prisons Early Release Processing Module

National Informatics Centre | Supreme Court proceedings closed: May 29, 2026

The Supreme Court closed proceedings in a case that drove the development of the E-Prisons Early Release Processing Module, a national digital system for processing premature release of prisoners. India's prisons are severely overcrowded. Undertrial prisoners make up the majority of those incarcerated, and thousands remain in custody beyond their legally permitted detention periods because paperwork does not move. The Court's decision to close the proceedings signals confidence that the system is working. NLO will assess whether that confidence holds.

05 | EDITOR'S NOTE**The Courts, the Algorithm, and the Question Nobody Is Asking**

By Bhoomija Khanna, Research Director

The Supreme Court's draft AI regulations for courts dropped on June 3. The comment deadline was June 20. I spent two weeks reading the draft and I want to put on record what I think is being missed.

Most commentary has focused on two things: the prohibition on AI adjudication, and the mandatory disclosure requirement for lawyers. Both deserve the attention they are getting. But there is a deeper question the draft raises and does not fully answer. I think it is the most important question in the document.

The draft takes what it calls an Innovation Over Restraint philosophy. AI is permitted for legal research, document summarisation, transcription, translation, and case management. AI is prohibited for adjudication, bail assessment, and outcome prediction. The line is drawn between the process of getting to a decision and the decision itself.

That line makes intuitive sense. It also rests on an assumption worth scrutinising: that the tools used to prepare a decision are neutral with respect to the decision itself.

They are not.

If a judge uses an AI tool to retrieve precedents and the tool systematically surfaces certain kinds of precedents over others, the decision is being shaped before it is made. If AI summarisation of voluminous records consistently emphasises or de-emphasises particular facts depending on how the model was trained, the judge is reading a filtered version of the record. If cause-list preparation algorithms schedule certain categories of matter in ways that affect court time, access to justice is being determined without any human making that determination explicitly.

None of these scenarios involve AI adjudication. All of them involve AI shaping adjudication.

The draft's prohibition framework is built around outputs: what AI cannot produce. The question that needs equal weight is inputs: what AI is allowed to influence before the judge ever picks up a pen. The comment process that closed on June 20 should have pressed the AI Committee on this. I hope it did.

India is the first major democracy to attempt a judicial AI framework at this scale. The draft is serious and the foundational principles are right. But regulating AI in courts in a way that stops it from signing the judgment while leaving it free to quietly shape the brief is not governance. It is the appearance of governance.

That distinction matters. And it will matter more the longer we pretend it does not.

Bhoomija Khanna

Research Director, National Legal Observatory

B.A. LL.B. (Hons.), Alliance University, Bangalore

June 2026

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